WAREHAM TOWN CLERK
2026 AUG 6 PM5:10

TOWN OF WAREHAM

MEMORIAL TOWN HALL
54 MARION ROAD
WAREHAM, MA 02571

CONSERVATION COMMISSION

Minutes July 1, 2026

I. Call to order by the Chair

Roll Call:

Sandy Slavin, Chairwoman
Kwame Bartie, Vice Chairman
Michael Mercier, Clerk
Paulajean O'Neill, Member
Jessica Parr, Member
Dr. Scott Soby, Member
Scott Parr, Associate Member

Chair Slavin welcomed the newest associate member, Scott Parr.

Absent:

Conservation Agent Christine Santos was also present via Zoom.

Chair Slavin opened the hearing at 6:00 p.m.

II. Public Hearings

Request for Determination of Applicability (RDA)

1. **Gino Vaconcelos, 6 Plymouth Rd – RDA 149** -applicant is proposing to construct a single-family dwelling with associated utilities, grading and landscaping. A portion of the septic system and grading fall within the buffer zone to Bordering Vegetated Wetland

Clerk Mercier read the notice for the record.

Motion: Clerk Mercier motioned to open the hearing. Seconded by Member Bartie. **Vote:** 6-0-0.

Present: Frank Gallagher, Gallagher Engineering and owner, Gino Vaconcelos

Mr. Gallagher presented plans for a new single-family dwelling with septic system work and grading within the 100-foot wetland buffer zone on a lot previously cleared and maintained as lawn.

A three-bedroom house is proposed towards Plymouth Road front; the septic system includes tank and leaching trenches partially inside the buffer zone.

Grading includes a 3:1 slope with erosion control barriers at slope base inside the 100-foot buffer; no impact to the 50-foot buffer.

Mature trees adjacent to septic work are intended to be preserved despite applicants' mixed feelings.

Soil testing and septic design meet required breakout conditions for slope.

Tree preservation was emphasized; it lies outside the commission's jurisdiction but is relevant to insurance concerns.

Member O'Neill noted stake installation for the project boundaries was missing; applicant to comply with staking requirements. Mr. Gallagher apologized; he didn't realize he needed to stake.

Debate centered on whether an RDA (Request for Determination) or a full NOI (Notice of Intent) is appropriate due to septic system placement in the buffer zone.

requested, and he didn't want to face that order of conditions again.
Chair Slavin said that the garage wouldn't be able to be in the 30' no activity zone.

Dr. Soby reviewed what the Commission was looking for in revised plans. He said the wetlands need to be re-delineated or to say that they haven't been moved and to include the intermittent streams. The garage to be moved out of the 30' no-activity zone. The plans need to include driveways and in the notes of the plans, to note what the material of the driveways will be, as well as add drywells to the plans.

Motion: Member Bartie motioned to continue the hearing to August 5, 2026. Seconded by Member Mercier. The motion passed unanimously. **Vote:** 6-0-0.

3. Natalia Pires, 22 West St – NOI 179 – applicant is proposing to construct a single-family dwelling, deck, and perform associated grading in buffer zone to Bordering Vegetated Wetland.
Clerk Mercier read the legal notice for the record.
Motion: Clerk Mercier motioned to open the hearing. Seconded by Member Bartie. **Vote:** 6-0-0.
Present: Brian Grady, GAF Engineering
Mr. Grady presented a proposal to construct a single-family home with associated grading near the cranberry bog and agricultural ditch. He said work is mostly outside jurisdiction; the 30-foot no-activity zone does not encroach on property.

There were no questions.
Ms. Santos had no comments, stating this was outside of the jurisdiction.
Motion: Member Dr. Soby motioned to close the hearing. Seconded by Member Bartie. **Vote**: 6-0-0.
Ms. Santos recommended the standard order of conditions.
Motion: Member Mercier moved the recommendation as the motion. Seconded by Member Bartie.
Vote: 6-0-0.

Abbreviated Notice of Resource Area Delineation Requests (ANRAD)

1. **Continued Public Hearings:**

Request for Determination of Applicability (RDA)
1. **Vincent Pircio, 192 Glen Charlie Rd – RDA 144 –** applicant is proposing to remove and replace an existing deck, and build a landing and stairs at a single-family residence in the buffer zone to Pond, and Land Subject to Coastal Storm Flowage.
Present: Vincent Pircio
Mr. Pircio stated a few changes were made to get it within the existing footprint. He said he updated pictures today. He said they'd be bringing the stairs farther away from the water than they are now. He did move the stakes to where the new area would be.
Member Bartie thanked him for submitting new pictures.
Dr. Soby confirmed where the stakes are currently is where they want to put it, which is 12' away.
The contractor explained details of the sono-tubes and where the deck will be placed.

Ms. Santos recommended a negative 3 and negative 6 with erosion controls.
Motion: Member Bartie motioned to close the hearing. Seconded by Member Mercier. **Vote:** 6-0-0.
Motion: Member Mercier motioned to approve with a negative 3 and negative 6 with erosion controls. Seconded by Dr. Soby. **Vote:** 6-0-0.

appreciated the applicant taking care of all their concerns. He did highlight the importance of mature tree preservation and privacy fence management.

Chair Slavin stated they received a recommendation letter from Mr. Faherty to assist with the conditions. She read each of the ten recommendations and the commission modified a few of them specifically. Conditions included mitigation, monitoring and erosion control incorporation.

Ms. Santos stated she was happy with the outcome.
Motion: Member Bartie motioned to close the hearing. Seconded by Member Mercier. **Vote**: 6-0-0.
Motion: Dr. Soby motioned to approve with the standard conditions, the ten conditions read into the record referenced by Josh Faherty's letter dated June 29, 2026 with the addition of three growing seasons, and 80% survival rate (two changes were made in Mr. Faherty's letter). Seconded by Member Mercier. **Vote:** 6-0-0.

6. **16 Widow's Cove Ln, David and Susan Broderick – NOI-162** – applicant is proposing to reconstruct an existing deck on an easement in Coastal Bank, buffer zone to Coastal Beach and Land Subject to Coastal Storm Flowage. Cont. 8/5

7. **George Rodriguez Jr, 3 Marks Cove Rd – NOI-168** – applicant is proposing to remove trees in Land Subject to Coastal Storm Flowage.
Ms. Santos stated there is no DEP file number and she hasn't heard from anyone.
Motion: Dr. Soby motioned to continue to August 5, 2026. Seconded by Member Parr. **Vote**: 6-0-0.

8. **Scott Kraihanzel, Town of Wareham – NOI-170** – applicant is proposing land disturbance and earthwork to construct an area for soil materials stockpiling adjacent to Wareham Wastewater Pollution Control Facility in Bordering Land Subject to Flooding and Riverfront Area.
Ms. Santos reported she hasn't heard anything. Dr. Soby asked that Ms. Santos contact Sarah Greenberg at GHD to find out about the progress.
Motion: Dr. Soby motioned to continue to July 15, 2026. Seconded by Member Bartie. **Vote**: 6-0-0.

9. **Point Independence Yacht Club Inc., 15 Independence Ln – NOI-172 –** applicant is proposing maintenance dredging in Land Under the Ocean, Land Containing Shellfish, and Land Subject to Coastal Storm Flowage. Cont. 7/15

10. **Joseph Perkins, 29 Old Woods Rd – NOI 176** – applicant is proposing to raze an existing dwelling and construct a new one with associated site improvements in a buffer zone to Spectacle Pond.
Ms. Santos stated they are waiting for a DEP number.

2. Amended Order of Condition Request

Extension Requests

1. **Beach Rd Off Pinehurst – SE76-2783**
Ms. Santos stated they wanted an extension request to start working on the replacement of the jetty and beach nourishment.
Motion: Member O'Neill motioned to grant the one-year extension. Seconded by Member Mercier.
Sheila Marinucci, an abutter, asked what the request is; and was told. She also read a statement in for the record. She said she is surprised they are yet again asking for an extension and was surprised that the project still isn't at a resolution to be completed.

Adjournment

Motion: Member Bartie motioned to adjourn. Seconded by Member Mercier. **Vote:** 6-0-0. The meeting adjourned at 8:02 p.m.

Signing of Documents Approved by the Commission

Approved: Michael R. Mercier **Clerk,** 8/5/2026 **date**